

Vishwanath Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 2 September 2013 · WRIT - C No. 45126 of 2013 · **Writ disposed of; relegated to clause 6.5 complaint**

HEADNOTE

A writ to quash an electricity bill issued after inspection is not decided on merits where paragraph 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory complaint to the Executive Engineer. A request for reconnection may likewise be made and considered in accordance with law.

FACTUAL SUMMARY

Vishwanath Sharma approached the Allahabad High Court seeking to quash an electricity bill of Rs. 77,595/- raised after an inspection of his premises on 13 June 2013. Counsel for the distribution licensee submitted that the grievance against the bill lay in a statutory complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner also wanted supply restored. The Division Bench heard both sides and did not examine the bill on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

complaint against inspection bill before Executive Engineer

HOLDING

A consumer aggrieved by an electricity bill issued after inspection has a statutory remedy of complaint under paragraph 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, who is to consider and decide the complaint in accordance with law. A request for reconnection may also be made and considered in accordance with law. The writ is disposed of on that footing without quashing the bill. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5

A writ to quash an electricity bill issued after inspection is not decided on merits where paragraph 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory complaint to the Executive Engineer. A request for reconnection may likewise be made and considered in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE RS. 77,595/- INSPECTION BILL

Left to a clause 6.5 complaint before the Executive Engineer ¶ 1

NOT DECIDED — ENTITLEMENT TO RECONNECTION

Petitioner may request reconnection, to be considered in accordance with law ¶ 1